

**बिड दस्तावेज़ / Bid Document**

| बिड विवरण / Bid Details                                                                                                     |                                                                                                                                                                                                                                                                                                                          |
|-----------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| बिड बंद होने की तारीख/समय /Bid End Date/Time                                                                                | 24-07-2026 16:00:00                                                                                                                                                                                                                                                                                                      |
| बिड खुलने की तारीख/समय /Bid Opening Date/Time                                                                               | 24-07-2026 16:30:00                                                                                                                                                                                                                                                                                                      |
| बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)                                                   | 180 (Days)                                                                                                                                                                                                                                                                                                               |
| मंत्रालय/राज्य का नाम/Ministry/State Name                                                                                   | Ministry Of Defence                                                                                                                                                                                                                                                                                                      |
| विभाग का नाम/Department Name                                                                                                | Department Of Military Affairs                                                                                                                                                                                                                                                                                           |
| संगठन का नाम/Organisation Name                                                                                              | Indian Navy                                                                                                                                                                                                                                                                                                              |
| कार्यालय का नाम/Office Name                                                                                                 | *****                                                                                                                                                                                                                                                                                                                    |
| शिकायत निवारण के संपर्क विवरण/ Contact details of Grievance redressal                                                       | HOD Email id :<br>Buyer Email id: pankaj-dixit@navy.gov.in                                                                                                                                                                                                                                                               |
| वस्तु श्रेणी /Item Category                                                                                                 | Manpower Outsourcing Services - Minimum wage - Skilled; ITI; Others                                                                                                                                                                                                                                                      |
| अनुबंध अवधि /Contract Period                                                                                                | 1 Year(s)                                                                                                                                                                                                                                                                                                                |
| बिडर का न्यूनतम औसत वार्षिक टर्नओवर (3 वर्षों का) /Minimum Average Annual Turnover of the bidder (For 3 Years)              | 38 Lakh (s)                                                                                                                                                                                                                                                                                                              |
| उन्हीं/समान सेवा के लिए अपेक्षित विगत अनुभव के वर्ष/Years of Past Experience Required for same/similar service              | 3 Year (s)                                                                                                                                                                                                                                                                                                               |
| इसी तरह की सेवाओं का पिछला आवश्यक अनुभव है/Past Experience of Similar Services required                                     | Yes                                                                                                                                                                                                                                                                                                                      |
| एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है/MSE Relaxation for Years of Experience and Turnover        | No                                                                                                                                                                                                                                                                                                                       |
| स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है /Startup Relaxation for Years of Experience and Turnover | No                                                                                                                                                                                                                                                                                                                       |
| विक्रेता से मांगे गए दस्तावेज़/Document required from seller                                                                | Experience Criteria,Bidder Turnover,Certificate (Requested in ATC),OEM Annual Turnover,Additional Doc 1 (Requested in ATC)<br>*In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer |

| बिड विवरण/Bid Details                                                                                                                                                                                                    |                                                                                                                                                                        |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेजों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid? | Yes (Documents submitted as part of a clarification or representation during the tender/bid process will also be displayed to other participated bidders after log in) |
| बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension                                                                                | 3                                                                                                                                                                      |
| दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended                                                                                                      | 7                                                                                                                                                                      |
| ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count                                                                                                                                            | 1                                                                                                                                                                      |
| बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled                                                                                                                                                                       | No                                                                                                                                                                     |
| बिड का प्रकार/Type of Bid                                                                                                                                                                                                | Single Packet Bid                                                                                                                                                      |
| तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation                                                                                        | 2 Days                                                                                                                                                                 |
| न्यूनतम मूल्य/Floor Price                                                                                                                                                                                                | This bid has been created/published with floor price(minimum value) selected by the Buyer. Service Providers are advised to quote above the minimum floor value.       |
| अनुमानित निविदा मूल्य (सभी करों सहित) भारतीय रुपये में / Estimated Bid Value in INR (Inclusive of all taxes)                                                                                                             | 1920839.86                                                                                                                                                             |
| मूल्यांकन पद्धति/Evaluation Method                                                                                                                                                                                       | Total value wise evaluation                                                                                                                                            |
| मध्यस्थता खंड/Arbitration Clause                                                                                                                                                                                         | No                                                                                                                                                                     |
| सुलह खंड/Mediation Clause                                                                                                                                                                                                | No                                                                                                                                                                     |

#### ईएमडी विवरण/EMD Detail

|                             |                     |
|-----------------------------|---------------------|
| एडवाइजरी बैंक/Advisory Bank | State Bank of India |
| ईएमडी राशि/EMD Amount       | 48021               |

#### ईपीबीजी विवरण /ePBG Detail

|                                         |                     |
|-----------------------------------------|---------------------|
| एडवाइजरी बैंक/Advisory Bank             | State Bank of India |
| ईपीबीजी प्रतिशत (%) /ePBG Percentage(%) | 5.00                |

ईपीबीजी की आवश्यक अवधि (माह) /Duration of ePBG required (Months).

14

(a). जेम की शर्तों के अनुसार ईएमडी छूट के इच्छुक बिडर को संबंधित केटेगरी के लिए बिड के साथ वैध समर्थित दस्तावेज प्रस्तुत करने हैं। एमएसई केटेगरी के अंतर्गत केवल वस्तुओं के लिए विनिर्माता तथा सेवाओं के लिए सेवा प्रदाता ईएमडी से छूट के पात्र हैं। व्यापारियों को इस नीति के दायरे से बाहर रखा गया है।/EMD EXEMPTION: The bidder seeking EMD exemption, must submit the valid supporting document for the relevant category as per GeM GTC with the bid. Under MSE category, only manufacturers for goods and Service Providers for Services are eligible for exemption from EMD. Traders are excluded from the purview of this Policy.

(b). ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

(c). ईएमडी और संपादन जमानत राशि लाभार्थी के पक्ष में होनी चाहिए। / Earnest Money Deposit (EMD) shall also be accepted by the buyer in the form of a surety bond.

**लाभार्थी /Beneficiary :**

OFFICER-IN-CHARGE, SSS(V)

Special Safety Service, Department of Military Affairs, Indian Navy, Ministry of Defence

(Capt Gurpartap Singh)

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

**एमआईआई अनुपालन/MII Compliance**

एमआईआई अनुपालन/MII Compliance

Yes

**एमएसई खरीद वरीयता/MSE Purchase Preference**

|                                                                                                                                                                                                           |     |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----|
| एमएसई खरीद वरीयता/MSE Purchase Preference                                                                                                                                                                 | Yes |
| सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$           | 15  |
| सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference | 100 |

1. The minimum average annual financial turnover of the bidder during the last three years, ending on 31st March of the previous financial year, should be as indicated above in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the bidder is less than 3-year-old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.

2. Years of Past Experience required: The bidder must have experience for number of years as indicated above in bid document (ending month of March prior to the bid opening) of providing similar type of services to any Central / State Govt Organization / PSU. Copies of relevant contracts / orders to be uploaded along with bid in support of having provided services during each of the Financial year.

3. **Purchase preference to Micro and Small Enterprises (MSEs):** Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as

defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 100% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

4. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

5. Past Experience of Similar Services: The bidder must have successfully executed/completed similar Services over the last three years i.e. the current financial year and the last three financial years(ending month of March prior to the bid opening): -

1. Three similar completed services costing not less than the amount equal to 40% (forty percent) of the estimated cost; or
2. Two similar completed services costing not less than the amount equal to 50% (fifty percent) of the estimated cost; or
3. One similar completed service costing not less than the amount equal to 80% (eighty percent) of the estimated cost.

#### अतिरिक्त योग्यता /आवश्यक डेटा/Additional Qualification/Data Required

**The Bidder should have executed at least X No. projects with contract value not less than (Rs) yy for each contract of providing manpower services to Central/ State Government Departments/ Public Sector Undertakings/ Autonomous Bodies in last N financial years:**SPECIAL SAFETY SERVICE ,

SITE B,  
SHIP BUILDING CENTRE,  
GHOSTANI GATE  
VISAKHAPATNAM-530014

**Scope of work & Job description:**[1780640122.pdf](#)

**Buyer to upload Gazette notification for the breakup of ESI/EPF/ELDI etc if required:**[1780640358.pdf](#)

**Buyer to upload undertaking that Minimum Wages indicated by him during Bid Creation are as per complied with The Code on Wages Act:**[1780640363.pdf](#)

#### Manpower Outsourcing Services - Minimum Wage - Skilled; ITI; Others ( 5 )

#### तकनीकी विशिष्टियाँ /Technical Specifications

| विवरण/ Specification      | मूल्य/ Values |
|---------------------------|---------------|
| <b>कोर / Core</b>         |               |
| Skill Category            | Skilled       |
| Educational Qualification | ITI           |
| Type of Function          | Others        |

| विवरण/ Specification                                                                            | मूल्य/ Values                                                                  |
|-------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------|
| List of Profiles                                                                                | Mechanic - Machines                                                            |
| Specialization                                                                                  | Engineering(Civil/Mech/Elec./IT /Comp Sc./Electronics/ E&E/Prod/Chem./Biotech) |
| Post Graduation                                                                                 | Not Required                                                                   |
| Specialization for PG                                                                           | Not Applicable                                                                 |
| Experience                                                                                      | 3 to 7 Years                                                                   |
| State                                                                                           | NA                                                                             |
| Zipcode                                                                                         | NA                                                                             |
| District                                                                                        | NA                                                                             |
| Is the Geographical presence of the Service Provider's office required in the consignee's State | Yes                                                                            |
| Name of states/ UT for geographical presence is required                                        | Andhra Pradesh                                                                 |
| <b>एडऑन /Addon(s)</b>                                                                           |                                                                                |
| <b>अतिरिक्त विवरण /Additional Details</b>                                                       |                                                                                |
| Title for Optional Allowances 1                                                                 | 0                                                                              |
| Title for Optional Allowances 2                                                                 | 0                                                                              |
| Title for Optional Allowances 3                                                                 | 0                                                                              |
| Designation                                                                                     | TECHNICAL STAFF FOR SSS(V)                                                     |

**क्रेता द्वारा निर्धारित न्यूनतम मूल्य/Minimum Floor Price defined by Buyer**

|                                                                            |     |
|----------------------------------------------------------------------------|-----|
| क्रेता द्वारा निर्धारित न्यूनतम मूल्य/Minimum Floor Price defined by Buyer | Yes |
|----------------------------------------------------------------------------|-----|

| प्राचल/Parameter | मूल्य/Values |
|------------------|--------------|
| कोर / Core       | 6            |

**अतिरिक्त विशिष्टि दस्तावेज़ /Additional Specification Documents**

**परेषिती/रिपोर्टिंग अधिकारी /Consignees/Reporting Officer and Quantity**

| क्र.सं./S.N<br>o. | परेषिती/रिपोर्टिंग<br>अधिकारी /Consignee<br>Reporting/Officer | पता/Address | संसाधनों की मात्रा<br>/ Number of<br>Resources to<br>be hired | अतिरिक्त आवश्यकता<br>/Additional<br>Requirement |
|-------------------|---------------------------------------------------------------|-------------|---------------------------------------------------------------|-------------------------------------------------|
|-------------------|---------------------------------------------------------------|-------------|---------------------------------------------------------------|-------------------------------------------------|

| क्र.सं./S.No. | परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer | पता/Address        | संसाधनों की मात्रा / Number of Resources to be hired | अतिरिक्त आवश्यकता /Additional Requirement                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
|---------------|---------------------------------------------------------|--------------------|------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1             | *****                                                   | *****Visakhapatnam | 5                                                    | <ul style="list-style-type: none"> <li>• Minimum daily wage (INR) exclusive of GST : 918</li> <li>• Bonus (INR per day) : 0</li> <li>• EDLI (INR per day) : 2.88</li> <li>• EPF Admin Charge (INR per day) : 2.88</li> <li>• Optional Allowances 1 (INR per day) : 0</li> <li>• Optional Allowances 2 (INR per day) : 0</li> <li>• Optional Allowances 3 (INR per day) : 0</li> <li>• Estimated Number of Overtime Hours per Resource per Month : 0</li> <li>• Remuneration per resource per hour for Overtime Hours (Including all applicable allowance etc &amp; excluding GST) : 0</li> <li>• ESI (INR per day) : 0</li> <li>• Provident Fund (INR per day) : 69.23</li> <li>• Number of working days in a month : 26</li> <li>• Tenure/ Duration of Employment (in months) : 12</li> </ul> |

## क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

### 1. Forms of EMD and PBG

Successful Bidder can submit the Performance Security in the form of Account Payee Demand Draft also (besides PBG which is allowed as per GeM GTC). DD should be made in favour of

OFFICER-IN-CHARGE, SSS(V)  
payable at  
CDA,VISAKHAPATNAM

. After award of contract, Successful Bidder can upload scanned copy of the DD in place of PBG and has to ensure delivery of hard copy to the original DD to the Buyer within 15 days of award of contract.

## **2. Service & Support**

AVAILABILITY OF OFFICE OF SERVICE PROVIDER: An office of the Service Provider must be located in the state of Consignee. DOCUMENTARY EVIDENCE TO BE SUBMITTED.

## **3. Past Project Experience**

**Proof for Past Experience and Project Experience clause:** For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria: a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed. b. Execution certificate by client with contract value. c. Any other document in support of contract execution like Third Party Inspection release note, etc. **Proof for Past Experience and Project Experience clause:** For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria: a. Contract copy along with Invoice(s) with self-certification by the bidder that service/supplies against the invoices have been executed. b. Execution certificate by client with contract value. c. Any other document in support of contract execution like Third Party Inspection release note, etc.

## **4. Buyer Added Bid Specific ATC**

Buyer Added text based ATC clauses

**1. (a) An undertaking letter acceptance of GeM bid terms and conditions and scope of work to be submitted.**

**(b) An office of the service provider must be located at Visakhapatnam, proof of the same to be uploaded along the bid documents non compliance will result in rejection of bid.**

**(c) Bidders are liable to be rejected in case of non-compliance to uploading certificates or documents per bid ATC and corrigendum if any.**

**(d) valid GST registration documents to be submitted.**

**(e) Buyer may cancel the order at its own discretion for situation arising due to service exigencies.**

**(f) Valid MSME certificate to be submitted if applicable.**

**(g) Bid security declaration to be submitted.**

**(h) Valid ESI/ EPF registration documents to be submitted.**

**(j) As per latest guidelines the service charge to be kept at minimum of 6%.**

**(I) Protection against Firm's Default/ Penalty Clause:**

**(i) As per the contract Labour (regulation and Abolition) Act 1970, in case the contractor fails to make payment of wages within the prescribed period or makes short payment, then the principle Employer (i.e. Buyer) shall make payment of wages in full or the unpaid balance due, as the case may be, to the contract labour employed by the contractor either by deducting from any amount payable to the contractor under any contract or as a Debt payable by the contractor.**

**(ii) Penal action against the firm defaulting in timely and legitimate payment of salary shall be taken iaw para 2.2 of manual for procurement of consultancy and other service, June 2022 and para 3.4 of DPM 09 which may include Debarment or Removal from the list of Approved Firms for a period which may extended up to two years.**

**(k) The service charges has been kept at a minimum of 6%, Accordingly minimum floor price of the tender has been set considering 6% Service charges. quote from bidder with service charges less than 6% shall not be considered.**

**(m) Minimum 03 years Past experience should be in similar nature of work.**

**(n) Buyer is retaining old contract staff under minimum wages payment under the discretion of Buyer. (p) Payment of employees to be completed within 07 days on completion of month as per contract starting. Under no circumstances, delay in payment of employee wages within beyond stipulated timeline is acceptable.**

**(q) Payment to Seller is through ACDA(N). Vizag on offline mode. Seller to submit all billing documents within 05 days of monthly wages payment. The Buyer is not responsible for delay in payment if seller delays in submission of complete billing documents (invoice, EPF payment challan, ESI payment challan, PBG, work completion Certificate and any other relevant documents as sought by Buyer). (r) Seller to submit undertaking for acceptance to maintenance capital to pay maintenance of three months wages throughout the contract period without any condition.. Seller to submit bank balance statement to the Buyer in case of delay in payment of wages when sought by Buyer.**

**(s) Seller to submit Declaration on notary with submission of the following:**

**(i) No commission money will be sought from the employment paid under minimum wages either by cash or other electronic mode of payment or other any forms.**

**(ii) Payment of EPF to employees every month as per extant policy unconditionally.**

**(iii) Undertaking for not blacklisting by any Govt organization.**

**(iv) The participation firms should not be a part of any pending arbitration/ bankrupt.**

**(v) Undertaking for paying wages. EPF to the hired employees as per minimum wages promulgated by Govt/ MoI and employment office.**

**(vi) Seller to replace employees on indication of non-performance/ disciplinary issues / any other points raised by the Buyer without any question within 10 days from the date written letter from the Buyer.**

**2. Medical Insurance should be covered by the firm till the entire contract**

## **अस्वीकरण/Disclaimer**

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.

8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

**All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.**

**For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.**

**The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:**

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**
- **All operative provisions of the erstwhile Labour Laws until their complete substitution.**

**All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.**

**This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.**

**However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.**

This Bid is governed by the [सामान्य नियम और शर्तें/General Terms and Conditions](#), conditions stipulated in Bid and [Service Level Agreement](#) specific to this Service as provided in the Marketplace. However in case if any condition specified in सामान्य नियम और शर्तें/General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement, then it will over ride the conditions in the General Terms and Conditions.

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने

व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

**---धन्यवाद/Thank You---**